

Plaintiff's circumstances, the court finds that the interests of justice will not be served by granting preference at this juncture. Setting this case for trial 120 days from this date, when no discovery has occurred would not serve the interests of any party.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601231	THOITS VS OREMOR OF RIVERSIDE GM LLC	DEMURRER ON COMPLAINT

Tentative Ruling: Hearing is continued to 8/24/26.

CCP § 430.41 and § 435.5 require a meet and confer process via phone or in person before filing a demurrer or motion to strike five days before the responsive pleading is due. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (CCP § 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP § 430.41(a)(3).)

Here, Defendant Mark Christopher Chevrolet asserted that it made an attempt to meet and confer on 5/5/26 by telephone and email, and after it did not receive a response, filed the instant motion. (Kay Decl. ¶ 2). This is insufficient.

The hearing is continued to 8/24/26, Defendant Mark Christopher Chevrolet is ordered to satisfy its obligation to meet and confer in person or by telephone with Plaintiff, the opposing party, pursuant to Code of Civil Procedure section 430.41. After meeting and conferring, the demurring Defendant is ordered to do one of the following at least five days before the continued hearing date:

- (1) vacate the hearing on the demurrer;
- (2) file with the court a declaration that the opposing party has agreed to file an amended pleading before the hearing date; or
- (3) file with the court a declaration explaining how the parties met and conferred, what issues they discussed, and why they could not resolve the issues raised.